

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

=====X
BENJAMIN VELEZ,

Plaintiff,

-against-

Index No.:

Venue is based upon
Location of Occurrence.

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT,
POLICE OFFICER "JOHN" ORTEGA and
POLICE OFFICER "JOHN DOE",

Defendant(s).

=====X **SUMMONS**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the Complaint is not served with this Summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York), and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 16, 2014

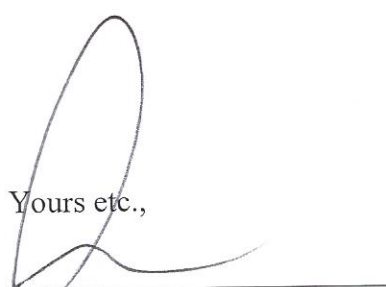
Defendant(s):

CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10038

POLICE OFFICER "JOHN" ORTEGA
23th Pct.
162 E. 102nd Street
New York, NY 10029

Yours etc.,


Anthony Iadevaia
The Law Offices of
ANTHONY IADEVIAIA
Attorneys for Plaintiff
1932 Second Avenue
New York, New York 10029
212-996-8700

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

=====X Index No.:
BENJAMIN VELEZ,

Plaintiff,

VERIFIED COMPLAINT

- against -

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT and
POLICE OFFICER "JOHN" ORTEGA and
POLICE OFFICER "JOHN DOE"

Defendant(s).

=====X

Plaintiff, BENJAMIN VELEZ, by his attorneys, THE LAW OFFICES OF ANTHONY
IADEVAIA, complaining of the Defendants, respectfully alleges the following upon information
and belief:

PRELIMINARY STATEMENT

1. This is a civil action brought by the plaintiff, BENJAMIN VELEZ, under New
York State and Federal Law, seeking compensatory damages, punitive damages and attorneys'
fees for the violation of his civil rights secured by 42 U.S.C. §1983 and 42 U.S.C. §1988 and the
New York State and United States Constitutions.

2. All claims herein arise from an incident that occurred on October 4, 2013, in
which an officers of the New York City Police Department, defendants, POLICE OFFICERS
"JOHN" ORTEGA and "JOHN DOE", acting under color of State Law, intentionally and
willfully subjected the plaintiff, BENJAMIN VELEZ, to deprivation of state and federal rights
including Excessive Force, Assault, Battery and Intentional Infliction of Emotional Distress;
Harassment, and Intimidation.

3. This action also includes claims against the Defendant, The City of New York, for their negligence in hiring, training, assigning, supervising, and retaining members of its Police Department including the defendants, Police Officers "John" ORTEGA and "John Doe"

4. Plaintiff seeks monetary damages (special, compensatory and punitive) against the defendants and an award of costs and attorneys' fees and such other and further relief as this court deems just and proper.

PARTIES

5. The Plaintiff BENJAMIN VELEZ was and is a resident of the County of New York, City and State of New York.

6. That on October 4, 2013, the defendant The City of New York was and still is a Municipal Corporation organized and existing under and by virtue of the laws of the State of New York.

7. That on October 4, 2013, the defendant The New York City Police Department was and still is an organization and/or subdivision of the defendant The City of New York.

8. That on October 4, 2013, and at all times mentioned herein, the defendant Police Officers "JOHN" ORTEGA and "JOHN DOE" were employed by and were members of the New York City Police Department and are being sued in their individual and professional capacities.

9. That on October 4, 2013, and at all times mentioned herein, each defendant was acting under color of State Law, and under color of the statutes, ordinances, regulations, policies, and customs and usages of the defendant The City of New York.

10. That on October 4, 2013 and prior thereto the Defendant, THE CITY OF NEW YORK, maintained the New York City Police Department, a duly authorized public authority

and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

11. At all times hereinafter mentioned, the individually named defendants, Police Officers "JOHN " ORTEGA and "JOHN DOE" were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

12. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State and/or City of New York.

13. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

14. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

15. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK is liable for the acts of the individual defendants based upon the theory of *respondeat superior*.

FACTS

16. That on or about October 4, 2013 at approximately 5:00 pm the plaintiff was lawfully walking on the public sidewalk along East 100th Street, New York, New York.

17. That at the aforementioned time and place, defendant police officers approached and subjected the plaintiff to questioning and intimidation.

18. That at the aforementioned time and place, while Plaintiff offered no resistance, Defendant police officers using excessive, brutal and unnecessary force grabbed Plaintiff by his neck, squeezed his neck and slammed Plaintiff against a brick wall while forcing his head against the said wall without reason or justification resulting in severe injuries to plaintiff's cervical spine.

19. That at the aforementioned time and place, while plaintiff offered no resistance, defendant police officers using excessive, brutal and unnecessary force slammed their handcuffs upon plaintiff's wrist without cause or justification resulting in severe injuries to plaintiff's wrist.

20. That the plaintiff did not fight or otherwise resist once advised that he was under arrest.

21. That during the aforesaid assaults upon plaintiff, other police officers stood idly by, did not intervene and simply allowed the defendant, Police Officer "JOHN" ORTEGA, to assault and batter the defenseless plaintiff.

22. That after being assaulted by the defendants, the plaintiff was taken into custody, placed in an NYPD police vehicle and taken to the 23rd Police Precinct where despite repeated requests for medical attention, no medical treatment was permitted.

23. That the plaintiff has sustained multiple permanent injuries including but not limited to fractures.

24. That as a result of the foregoing, the plaintiff sustained, *inter alia*, physical injury, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “24” with the same force and effect as if fully set forth herein.

26. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

27. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

28. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with the actual and/or apparent authority attendant thereto.

29. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

30. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

31. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “30” with the same force and effect as if fully set forth herein.

32. The level of force employed by defendants was objectively unreasonable and in violation of the constitutional rights of the plaintiff.

33. As a result of the aforementioned conduct of defendants, plaintiff was subjected to excessive force and sustained physical and emotional injuries.

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

34. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "33" with the same force and effect as if fully set forth herein.

35. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

36. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

37. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

38. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

39. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

40. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff BENJAMIN VELEZ's constitutional rights.

41. The acts complained of deprived plaintiff of his rights:

- a. Not to be deprived of liberty without due process of law;
- b. Not to have summary punishment imposed upon him; and
- c. To receive equal protection under the law.

42. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the defendants.

PENDANT STATE CLAIMS

43. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "42" with the same force and effect as if fully set forth herein.

44. On or about December 4, 2013 and within (90) days after the claim herein accrued, the plaintiff duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

45. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

46. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h which took place on February 14, 2014.

47. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

48. Plaintiff has complied with all conditions precedent to maintaining the instant action.

49. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

**FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT**

50. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "49" with the same force and effect as if fully set forth herein.

51. Defendants' aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

52. As a result of the defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

**SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY**

53. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "52" with the same force and effect as if fully set forth herein.

54. Defendant, Police Officers "JOHN" ORTEGA and "JOHN DOE", touched plaintiff in a harmful and offensive manner.

55. Defendant police officers did so without privilege or consent from plaintiff.

56. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

57. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "56" with the same force and effect as if fully set forth herein.

58. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

59. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

60. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

61. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

62. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright and loss of freedom.

**FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

63. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "62" with the same force and effect as if fully set forth herein.

64. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

65. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

66. Due to the negligence of the defendants as set forth above, plaintiff suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

WHEREFORE, the Plaintiff demands judgment as against each Defendant for all causes of action herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with interest, costs and disbursements of this action for (1) compensatory damages; (2) punitive damages; (3) reasonable attorneys' fees; and (4) such other and further relief that this court deems just and proper.

Dated: New York, New York
September 16, 2014



ANTHONY IADEVAIA

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New York, NY 10029
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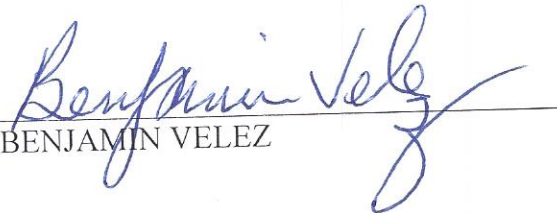
VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF NEW YORK)

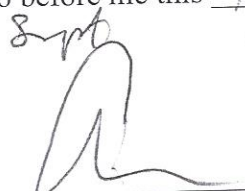
BENJAMIN VELEZ, being duly sworn, deposes and says:

1. I am the Plaintiff/Petitioner/Claimant in the foregoing action.
2. I have read the foregoing COMPLAINT and know the contents thereof. It

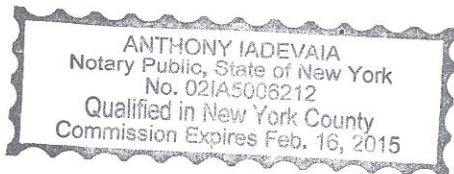
is true to my knowledge, except as to matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.


BENJAMIN VELEZ

Sworn to before me this 17th
day of Sept, 2014



NOTARY PUBLIC



Index No.

SUPREME COURT OF THE STATE OF NEW YORK
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BENJAMIN VELEZ

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT and
POLICE OFFICER "JOHN" ORTEGA and
POLICE OFFICER "JOHN DOE"

Defendant(s).

SUMMONS & VERIFIED COMPLAINT

THE LAW OFFICES OF ANTHONY IADEVAIA

Attorneys for Plaintiff(s)

1932 Second Avenue
New York, New York 10029
(212) 996-8700

To:

Attorney for

Service of a copy of the within
is hereby admitted.

.....
Dated:.....201..

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice law in the court of the State of New York, certifies that upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 9-17-14

By: 